HILCHOT PESAH - SHULHAN ARUKH

The Seder Night: Reclining, Four Cups & Erev Pesah on Shabbat

Simanim 471–472

Recap of Previous Classes

Class	Simanim	Topics Covered
Class 1	429–432	30 days before Pesach; month of Nisan; Shabbat HaGadol; Bedikat Chametz timing; the bracha
Class 2	432–433	Why "al biur" not "al bedikat"; candle vs torch; where to check; high/low places; hole in walls; synagogues
Class 3	434–437	After Bedikah — bitul night and day; chametz timeline; appointing agents; missed bedikah; renting a house
Class 4	438–440	Mouse/child with chametz; kezayit threshold; kavua principle; non-Jew depositing chametz
Class 5	443–444:1	Chametz on Erev Pesach after six hours; calculating the times; smelling chametz; Erev Pesach on Shabbat (intro)
Class 6	444:2–5, 445	Erev Pesach on Shabbat (continued): bitul/bi'ur schedule; disposing on Shabbat; bi'ur chametz methods
Class 7	446–447:1–2	Finding chametz during Pesach; muktze on Yom Tov; kashrut principles; be-mashehu rule
Class 8	447:4, 5, 10	Chozer ve-ne'or (reawakening); practical implications for hechsherim; noten ta'am li-fgam on Pesach
Class 9	448	Chametz she'avar alav ha-Pesach; mechirat chametz — origins, kinyanim, and practical details
Class 10	451:1–4, 6	Hag'alat Kelim Part 1: Torah sources, libun vs hag'alah, rov tashmisho, earthenware, knives, bowls
Class 11	451:5, 7–26	Hag'alat Kelim Part 2: Pans, Teflon, glass, sinks, covering surfaces, cold absorption
Class 12	**471–472**	**The Seder night: preparing when Erev Pesach falls on Shabbat, reclining (hasabah), the four cups, matzah on Erev Pesach, women's obligations, engaging children**

Siman 471 – Erev Pesach in the Afternoon

Eating on Erev Pesach — What's Permitted and When

Matzah on Erev Pesach

Shulchan Aruch: It is forbidden to eat matzah on Erev Pesach.

From when? Three opinions in the Rishonim:

Opinion	Prohibition Begins	Who Holds
Minority opinion	All 24 hours before (from the previous night)	A minority view
Rambam (Shulchan Aruch follows)	**From the morning** of Erev Pesach	Middle position
The Rosh	From midday (chatzot) of Erev Pesach	Lenient position

This year (Erev Pesach on Shabbat): On **Friday night**, a person is permitted to eat regular matzah for the Shabbat meals. The prohibition only begins on Shabbat morning. So you can use matzah for lechem mishneh at the Friday night seudah.

Matzah Ashirah: Permitted on Erev Pesach all the way until the **10th hour** (two hours before the end of the day — approximately 5:00 PM in England).

From the 10th hour onward:

- Don't eat a substantial amount of anything — so you eat the matzah at the Seder with appetite (le-te'avon).
- A bit of fruit or vegetables is fine.
- People who get full easily should eat very little.
- The Shulchan Aruch says you shouldn't even have wine from this time.

Children and Matzah on Erev Pesach

Rama: Young children may be given matzah to eat on Erev Pesach — since otherwise they'd have nothing substantial to eat (no bread, no matzah for adults).

This Year: Preparing the Seder Table on Shabbat

The problem: Erev Pesach falls on Shabbat. You cannot prepare from Shabbat for after Shabbat (hachana). Nightfall in London is approximately 8:40 PM. If you only begin setting the table at 8:40, it could take 20–30 minutes with a large gathering — delaying the Seder significantly.

The Solution: Ben HaShmashot (Twilight)

Principle: It is permissible to do something forbidden **rabbinically** during ben ha-shmashot (from sunset to nightfall) if it is for a **mitzvah purpose** (le-tzorech mitzvah).

- Preparation from Shabbat to Yom Tov is forbidden **rabbinically** (not de'oraita).
- Ben ha-shmashot in London this year: from approximately **7:52 PM** (sunset) to 8:40 PM (nightfall).

- If there is a genuine tzorech mitzvah — e.g., many guests, young children who can't stay up, need to begin the Seder on time for proper participation — you may begin setting the table from 7:52 PM.

What counts as tzorech mitzvah? Each person must determine this for themselves. Large families, many guests, young children — certainly qualifies. Even a small gathering where timely participation would be enhanced — arguably qualifies.

Critical Restrictions — What You CANNOT Do During This Window

Even during ben ha-shmashot, you can only do things that are forbidden because of **hachana** (preparation). You **cannot** move items that are intrinsically **muktzeh**:

Item	Status on Shabbat	Can You Prepare It from 7:52?
Cutlery, plates, cups	Not muktzeh	✅ Yes
Seder plate	Not muktzeh	✅ Yes
Pouring wine into cups	Not muktzeh	✅ Yes
Havdalah candle	Muktzeh (fire)	❌ No — wait until nightfall
Matzah Shmura (designated for the Seder)	Muktzeh (set aside for a mitzvah — no permissible use on Shabbat)	❌ No — wait until nightfall
Regular matzah	Not muktzeh (can feed to children)	✅ Yes

Why is Matzah Shmura muktzeh? Regular matzah has a use on Shabbat (feeding children on Erev Pesach). But the expensive matzah shmura designated specifically for the Seder has no permissible use on Shabbat — adults can't eat it (Erev Pesach), and you wouldn't feed it to children. Therefore it's muktzeh.

Exception: If a person uses matzah shmura for the entire Pesach (all seven days), then all their matzah is the same — arguably not muktzeh on Shabbat.

A Note on Regular Matzah and Matzah Shmura

- Regular Rakuzen machine matzah is essentially matzah shmura (watched from the time of grinding).
- The person who runs Rakuzen confirmed: they say "le-shem matzat mitzvah" on all their matzah, knowing many people rely on it.
- The expensive hand-baked matzah shmura has two advantages: (1) hand-baked (vs. machine), and (2) the wheat is guarded from **harvesting** (not just from grinding).
- Me'ikar ha-din: matzah shmura from the time of grinding suffices. Regular matzah is fine for the mitzvah.

Siman 472 – Setting Up the Seder

Beginning the Seder — Don't Delay

Shulchan Aruch: Set your table in advance. When you return from the synagogue, begin immediately. Don't delay.

Why? So the children won't fall asleep and will participate fully. The mitzvah is to keep them engaged.

Kiddush: Should only be said after nightfall (approximately 8:40 PM in London).

Why not start early, as on a regular Shabbat?

- On Shabbat, we add from the weekday to Shabbat (tosefet Shabbat) — so Kiddush can be early.
- On Pesach night: **matzah must be eaten at night** (de'oraita). The Haggadah must be recited at the same time as the matzah obligation. The four cups are also a nighttime obligation.
- Therefore, Kiddush (the first of the four cups) should ideally be after nightfall.

However — leniencies if it's late:

- Chacham Ovadia and many Poskim: In the northern hemisphere where nightfall is very late, you may begin Kiddush **from sunset** — as long as you don't begin Ma Nishtana before nightfall.
- Extreme circumstances (care homes, elderly, very young children): You can do even more of the Haggadah before nightfall, leaving at least one section and the matzah eating for after nightfall.

Havdalah This Year

Since it's Motzei Shabbat into Yom Tov, Havdalah is incorporated into Kiddush (yaknahaz — yayin, Kiddush, ner, havdalah, zeman).

The Ner (candle) issue: You need a flame for Boreh Me'orei HaEsh. You cannot use electricity for Havdalah (unlike Hadlakat Nerot Shabbat). It must be a naked flame. If starting before Shabbat ends, you'd need an existing flame — not one that's been lit.

Practical advice: Unless there's a genuine need, start the Seder after nightfall to avoid all these complications.

Hasabah (Reclining) — Detailed Laws

The Basic Requirement

Shulchan Aruch: A person should be in a mode of reclining the **entire night** — not just at the specific mitzvah moments (matzah, four cups). In practice, we focus on the key moments, but the spirit is comfort and freedom throughout.

How to Recline

Position	Valid?
Leaning backwards	❌ Not considered aristocratic reclining
Leaning forward / face down	❌ Looks worried, not free
Leaning to the **right**	❌ Dangerous (food can get trapped); also impractical (right hand needed for eating)
Leaning to the left	✅ Correct — even for left-handed people

Why left even for left-handed people? The danger of food getting trapped (leaning right) is more serious than the eating convenience — so everyone leans left.

Practical reality (the Ravia's position):

The Ravia (R. Eliezer Ben Yoel HaLevi, 12th century Germany) argued: the entire concept of reclining was only relevant when people ate on couches (Roman-era culture). Nowadays, leaning on a chair is uncomfortable and doesn't represent freedom at all.

No Sephardi Rishon took this position. The Rambam codified all the reclining laws fully — because in Eastern cultures, people continued eating on low tables and couches for centuries.

The fossilization problem: Without a Sanhedrin, we cannot formally change established halachot, even when the underlying reason no longer applies. If a Sanhedrin existed today, they would likely modernize this — perhaps to comfortable seating on couches around a low table.

Practical advice from the Rav: The most important thing is to be **comfortable** and feel genuine freedom. Get a good cushion, sit back, relax. If you have the space and the couches — eating on couches around a low coffee table is actually the **ideal** fulfillment of hasabah.

If You Forgot to Recline

Shulchan Aruch: If you did any mitzvah requiring reclining without reclining — you must **repeat** it. This can even mean going back through the entire Seder (since the four cups must be in order with the Haggadah in between — shelo ka-seder).

In practice: Many Poskim say be-di'avad you can rely on the Ravia (reclining isn't necessary nowadays) and don't need to repeat. As long as you were comfortable and felt good throughout — that's sufficient.

Who Must Recline?

The famous reversal:

Shulchan Aruch (based on the Mishnah): Women don't need to recline — unless they are "prominent" (ishah chashuva).

Rama: All our women nowadays are considered prominent (chashuva). However, because of the Ravia (who says nobody needs to recline nowadays), the Ashkenazi custom is that women **don't** recline — relying on the Ravia specifically for women.

Sephardi development: The Knesset HaGedolah (Benvenisti) and others eventually established that Sephardi women are also considered chashuva. And since Sephardim **never** adopted the Ravia's opinion, the result is:

Community	Men Recline?	Women Recline?
Sephardim	✅ Yes	✅ Yes
Ashkenazim	✅ Yes	❌ No (relying on the Ravia for women)

This is the **exact opposite** of what a plain reading of the Shulchan Aruch and Rama would suggest.

Reclining in the Presence of Your Rav

- A son by his father: **does not** need to ask permission to recline.

- A student in the presence of his Rav: **must ask permission**. It is disrespectful to recline in front of your Rav without permission.
- If the Rav doesn't grant permission — the student simply doesn't recline. That's not me'akev (it doesn't invalidate the mitzvah in that case). The student should stay and not leave.

The Four Cups (Arba Kosot) — How Much to Drink

The Amounts

Measurement	Volume	When Required
Revi'it (full measure)	~86 ml	Le-chatchila — drink this for each of the four cups
Melo Lugmav (cheekful)	~44 ml (varies by person)	Be-di'avad — if you really can't drink a full revi'it

Comparison to regular Kiddush: On Friday night, you only need melo lugmav (44 ml) le-chatchila. On Pesach night, you need a full revi'it (86 ml) — because the four cups are about experiencing **herut** (freedom), not just fulfilling Kiddush.

The Rambam's additional opinion: You should drink the **majority of your cup**, regardless of its size (not just a revi'it). This is why some people use small cups — so they can drink the whole thing.

Kaf HaChaim: You should drink the **entire cup** — the whole thing. Even if the cup holds more than a revi'it.

Practical reference: A standard small plastic cup ≈ 170 ml. A revi'it (86 ml) is about half of that. For regular Shabbat Kiddush, about a third suffices.

Time Frame for Drinking

You should drink each cup in one go — not sip it slowly.

Standard	Time Frame
Le-chatchila	A few gulps — kedei shiyur revi'it
Be-di'avad	Within kedei achilat pras (~4.5 minutes)

Finding It Difficult

The Rashba: Even if wine is difficult for you — you must still push yourself to drink the four cups. The Chachamim established this mitzvah and it must be fulfilled.

If wine causes genuine medical problems (migraines, allergies): consult a rabbinical authority for alternatives.

Red Wine vs. White Wine

Shulchan Aruch: It is preferable to use **red wine** for the four cups.

Two reasons:

1. Commemorates the Midrash about the Egyptians bathing in the blood of the Israelites.

2. Red wine was traditionally considered more prestigious/important.

Exceptions:

- If you **prefer** white wine — white is fine.
- If there are **blood libels** in the community — the Mishnah Berurah says use white wine to avoid accusations.

Mevushal (Pasteurized) Wine and Grape Juice

Shulchan Aruch: You can fulfill the mitzvah of the four cups with **mevushal** (pasteurized) wine and with grape juice.

The Rambam's strict opinion: Yayin mevushal no longer has the status of wine — you **cannot** fulfill Kiddush (or the four cups) with it. The Shulchan Aruch brings this opinion in Hilchot Kiddush (Siman 272) as well.

The Rav's important point on consistency: Many people insist on non-mevushal wine specifically for Pesach night, citing the Rambam — but use mevushal wine every other Friday night. This is inconsistent.

If You Follow...	Then...
The Rambam (non-mevushal required)	Be consistent: non-mevushal **every** Shabbat, not just Pesach
The main halacha (mevushal is fine)	Mevushal works for Pesach just as it works every Shabbat

There's an argument that regular Shabbat Kiddush has a stronger de'oraita basis than the four cups (which are entirely de-rabbanan) — so if anything, Friday night should be stricter.

Women's Obligation

Shulchan Aruch: Women are **equally obligated** in all mitzvot of the Seder night — matzah, maror, four cups, Haggadah, everything.

Why? They were part of the miracle of the Exodus. The Midrash says: "We were redeemed from Egypt because of the righteous women."

Engaging Children

Give children their own cups if they're old enough to understand. This is a mitzvah but **not obligatory** (not me'akev). The Chachamim never established a formal mitzvah of chinuch for wine, since children don't enjoy it — and chinuch requires the child to benefit from and understand the mitzvah.

Chacham Ovadia writes: If it's difficult financially or practically — children can drink from their parents' cups. No need for separate cups for every child.

Have treats ready for the children — nuts, sweets, rewards — so they stay alert and engaged throughout the evening.

Ma Nishtana — Don't Stop at the Question

A common mistake: children sing Ma Nishtana beautifully and then disengage. But Ma Nishtana is just the **question** — the answer is Avadim Hayinu and everything that follows.

The Syrian minhag: Between Ma Nishtana and Avadim Hayinu, the ba'al ha-bayit announces: **"Hada jawab"** (Arabic: "This is the answer") — making the point explicitly that we've asked the question and now comes the response.

If you had only one minute for the entire Seder, it would be: Ma Nishtana → Avadim Hayinu → Pesach, Matzah, Maror.

Summary of Key Practical Points for This Year

Topic	Key Takeaway
Matzah on Erev Pesach	Forbidden from the morning (Shulchan Aruch). Friday night this year: matzah is permitted.
Preparing the table	Cannot prepare from Shabbat for after Shabbat. From sunset (~7:52 PM London): permitted for tzorech mitzvah. Cannot move muktzeh items (Havdalah candle, Matzah Shmura).
Starting the Seder	Ideally after nightfall (~8:40 PM London). Can start Kiddush from sunset if late/needed. Don't start Maggid before nightfall.
Reclining	Lean to the left on something comfortable. Sephardim: men and women. Ashkenazim: men only. Be-di'avad if forgot: can rely on the Ravia.
Four cups	Le-chatchila: 86 ml each. Be-di'avad: 44 ml (melo lugmav). Drink in a few gulps, not sipping.
Wine type	Red preferred. Mevushal is fine. Be consistent with what you do on Shabbat.
Women	Fully obligated in all Seder mitzvot.
Children	Own cups if able — but not obligatory. Have treats ready. Engage them beyond Ma Nishtana into the answers.

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